



POLICE DEPARTMENT

August 19, 2008

MEMORANDUM FOR: Police Commissioner

Re: Detective Dennis Jones
Tax Registry No. 884101
Police Commissioner's Liaison Unit
Disciplinary Case No. 83549/07

The above-named member of the Department appeared before me on May 7, 2008, charged with the following:

1. Said Detective, Dennis Jones, while assigned to the Police Commissioner's Liaison Unit, while off-duty, on or about October 23, 2007, at a location known to this Department, in Kings County, did fail to comply with Department guidelines on confrontation situations, in that said Detective, after being confronted by an on-duty uniformed Police Officer, identity known to the Department, did fail to immediately identify himself as a member of service.

PG 212-33, Page 1, Scope – CONFRONTATION SITUATIONS

2. Said Detective, Dennis Jones, while assigned to the Police Commissioner's Liaison Unit, while off-duty, on or about October 23, 2007, at a location known to this Department, in Kings County, did fail to comply with Department guidelines on confrontation situations, in that said Detective, after being confronted by an on-duty uniformed Police Officer, identity known to the Department, did fail to comply with said Officer's commands to pull over his vehicle to the side of the road, provide a driver's license, and to return to his vehicle. (*As amended*)

PG 212-33, Page 1, Scope – CONFRONTATION SITUATIONS

3. Said Detective, Dennis Jones, while assigned to the Police Commissioner's Liaison Unit, while off-duty, on or about October 23, 2007, at a location known to this Department, in Kings County, was discourteous to a New York City Police Sergeant, identity known to the Department, in that said Detective turned his back and began to dial his cellular phone while being questioned by said Sergeant about a confrontation situation.

PG 203-09, Page 1, Paragraph 2 – PUBLIC CONTACT – GENERAL
REGULATIONS

4. Said Detective, Dennis Jones, while assigned to the Police Commissioner's Liaison Unit, while off-duty, on or about October 23, 2007, at a location known to this Department, in Kings County did wrongfully engage in conduct prejudicial to the good order, efficiency, and discipline of the Department, in that said Detective, in front of a group of bystanders, questioned the authority of an on-duty uniformed Police Officer, identity known to the Department, to perform his job.

PG 203-10, Page 1, Paragraph 5 – PUBLIC CONTACT – PROHIBITED
CONDUCT/GENERAL REGULATIONS

The Department was represented by Mark Berger, Esq., Department Advocate's Office, and Respondent was represented by James Moschella, Esq.

The Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

The Respondent is found Guilty of Specification Nos. 3 and 4. It is recommended that Specification Nos. 1 and 2 be Dismissed.

SUMMARY OF EVIDENCE PRESENTED

The Department's Case

The Department called Police Officer Dean Pattona and Sergeant Joseph Gale as witnesses.

Police Officer Dean Pattona

Police Officer Pattona, who has been assigned to Highway Unit #2 for the past seven years, testified that on October 23, 2007, he performed a 1400 hours to 2230 hours tour of duty in uniform, operating marked Department vehicle number 2914, performing "operation buckle up" patrol duties. Because his camera had run out of tape, he was directed by his supervisor to return to Highway 2's base. As he was driving southbound on Flatbush Avenue in Brooklyn, at one point he was one car length behind a black Nissan [REDACTED]. He noticed that the driver was driving erratically and committing violations by weaving in and out of traffic. Pattona accelerated between this car and another car to pass by them.

When Pattona stopped at a traffic signal at Grand Army Plaza, this black Nissan [REDACTED] pulled up next to him. The Respondent, who was driving the [REDACTED] began "yelling" at him, but he could not make out what the driver was saying. He rolled down his window and asked the Respondent, "Is there a problem sir?" The Respondent exclaimed, "You're driving like a lunatic! You just cut that car off!" He responded, "Sir if you want to continue this discussion please pull up into the bus stop." The Respondent then repeated, "You're driving like a lunatic!" He again told him, "Pull your vehicle up into the bus stop." Pattona observed that "many people" were standing at the bus stop waiting for the bus. The Respondent proceeded to enter the bus stop but he moved his car up less than two car lengths and pulled over by cutting in front of Pattona's vehicle and stopping which resulted in the [REDACTED] blocking Pattona's vehicle.

The Respondent then got out of his car and stood on the street. This made Pattona feel that "the threat level had escalated." Pattona told him, "Get back in your car and

move your car!" He directed him to pull to the side of the road and to produce his license and registration. The Respondent told him, "I don't have to listen to you, bro. Don't tell me what to do. Who do you think you are?" Pattona responded that if he did not produce his license and registration, "we are going to have a problem." Pattona heard someone standing at the bus stop say, "Yo, it's gonna go. This guy is taking on a cop." The Respondent then told him, "Call your supervisor, bro." Pattona told the Respondent, "I'm not your bro." He radioed for his supervisor Sergeant Joseph Gale to respond to the scene and then told the Respondent, "Okay, I have a supervisor responding. Move your car." The Respondent exited his vehicle and Pattona noticed that he was wearing a lapel pin on his jacket. Only then did the Respondent display his Department ID card.

On cross-examination, when Pattona was asked whether he considered it mere coincidence that the same driver he had just followed and observed committing traffic violations, but had no contact with, had pulled up next to his vehicle and yelled at him, Pattona responded that he found this "uncanny, bizarre" and "very, very unusual."

Pattona adamantly asserted that when the Respondent pulled up next to his vehicle, the Respondent did not say he was "on the job" or otherwise state that he was a member of the service. Pattona did acknowledge that he "might have possibly noticed" that the Respondent was wearing a law enforcement lapel pin after the Respondent got out of his car, although Pattona asserted that he was unable to tell whether the lapel pin was for a Department detective unit or was for the "Secret Service" or some other law enforcement entity. Pattona also acknowledged that when the Respondent told him to contact his "supervisor," he had "a very strong feeling" that this use of this police terminology reflected that he was a member of the service. Pattona admitted that he had

stated at his official Department interview that he never felt threatened by the Respondent. Pattona agreed that the Respondent's car was not blocking "one hundred percent" of his vehicle.

Sergeant Joseph Gale

Sergeant Gale, who has been assigned to Highway Unit #2 for the past four years, testified that on October 23, 2007, when Pattona radioed him for him to respond to his location, Pattona did not state that another member of the service was at the scene. When he arrived at the scene, Pattona told him that the Respondent had shown him a Department ID card. Pattona asserted that the Respondent had used his car to block in Pattona's vehicle and had then initiated a confrontation.

He then approached the Respondent and asked him for his Department ID card. He took it from the Respondent. He asked the Respondent, in a "stern" tone because he "wanted to let him know" that what he had done to Pattona was improper, "Are you a supervisor?" The Respondent answered, "You know I'm not." He then asked the Respondent, "What gives you the right to stop a police officer in uniform?" The Respondent answered, "I work for the PC's office." Sergeant Gale responded, "I don't care where you work. What gives you the right to cut off and stop and initiate a confrontation with a police officer in uniform?" The Respondent answered, "I don't like the way you are talking to me." The Respondent then "turned his back to me," walked two steps away and "started pushing numbers" on his cell phone. He told the Respondent, "Detective, hang up the phone and turn around," but he had to repeat this

before the Respondent turned around and faced him. He did not know if the Respondent was speaking to anyone on the cell phone.

On cross-examination, Sergeant Gale was confronted with a statement he made at his official Department interview. He had stated then that the Respondent had told him, "Your guy was driving like crazy and he cut off another car." Sergeant Gale testified that he had no present recollection of having said this. He recalled that the Respondent had said to him, "You know what happened." He testified that he believed that the Respondent had forcibly stopped Pattona's vehicle because Pattona told him that the Respondent had pulled his car in front of his RMP and blocked him in. Pattona also told him that the Respondent had stated, "I don't have to give you anything." Sergeant Gale testified that he was not being sarcastic when he asked the Respondent, "Are you a supervisor?" Rather, "it was my way of emphasizing that he was not a supervisor."

The Respondent's Case

The Respondent testified in his own behalf.

The Respondent

The Respondent, a 24-year member of the service who has been assigned to the Police Commissioner's Liaison Unit for the past six years, recalled that his tour of duty on October 23, 2007, ended at 7:00 p.m. when he signed out. He then drove out of the One Police Plaza garage in his personal car, a black 2007 Nissan [REDACTED] The Respondent had his Department radio and his cell phone inside his vehicle and he was carrying his firearm, his ID card and his shield on his person.

The Respondent testified that even when he is off duty, he regularly engages in community relations-related tasks on behalf of the Department and that on that particular evening he was driving to the office of former New York City Councilwoman Una Clark who had complained to him about a condition within the 71 Precinct.

He was in Brooklyn driving southbound on Flatbush Avenue when, just before he reached the intersection of Vanderbilt Avenue near the entrance to Grand Army Plaza, an RMP accelerated past him at a high rate of speed. The RMP's operator then suddenly "stomped on his brakes." A car that was behind the RMP, to avoid rear ending the RMP, swerved into the lane that the Respondent's car was in causing the Respondent to "stomp on my brakes" and come to a full stop in order to avoid an accident with this other car. The other car almost hit the Respondent's car, missing it by "less than a foot."

The RMP then pulled directly in front of the Respondent's car and the Respondent followed behind the RMP as the operator proceeded to drive very slowly, at about five miles per hour. The Respondent "flipped my high beams to catch his attention" so that the RMP's operator would be aware "that there was cars behind him."

Because the Respondent did not know "what was going on" with the RMP's operator, when the RMP pulled over and stopped at a crosswalk on Flatbush Avenue even though the traffic signal was green, the Respondent pulled his car up next to the RMP, waved at him and asked the operator, "What's the problem? Is there something wrong?" The operator, who was Police Officer Pattona, did not appear to be hurt or sick. He waved his hand and told the Respondent several times, "Keep it moving." The Respondent told Pattona, "I am on the job. What's the problem?" Pattona told the Respondent to pull his car over to the side of the road. The Respondent told Pattona,

"You pull over and I will pull over." The Respondent then pulled his car over next to a bus stop about six car lengths in front of the RMP, which had not moved.

The Respondent testified that he got out of his car and stood on the street. Pattona then got out of his RMP and "yelled" at the Respondent, "Get back in your car!" The Respondent "couldn't believe he told me to get back in my car," and so he asked Pattona, "What for?" The Respondent then turned around, opened his car door, reached into his car and removed his Department radio and his cell phone. The Respondent noticed that people who were standing at the bus stop "were observing to some degree what was going on because it was an RMP there."

When Pattona saw that he had not gotten back into his car, Pattona walked over to him, put his face "five inches" from the Respondent's face and yelled, "What's your problem?" The Respondent told him, "You almost caused a big accident back there." Pattona asked, "What are you talking about?" He told him, "You cut that car off." Pattona responded, "I didn't cut anybody off. That guy was driving reckless." Pattona asked him, "Are you on the job?" The Respondent withdrew his Department ID from his breast pocket and displayed it to Pattona.

Pattona then told the Respondent that he had seen him improperly changing lanes as he was driving on Flatbush Avenue. The Respondent told Pattona, "We are not going to get into all of that. I am not going to argue with you about he said, she said, anything like that. Just call a sergeant, bro." Pattona then twice screamed at the Respondent, "I'm not your bro." Pattona radioed for his supervisor to respond to the scene. Pattona did not say anything to the Respondent after that.

The Respondent placed six to eight calls on his cell phone while he and Pattona waited for the supervisor to arrive. He testified that he placed a call to a sergeant who was assigned to the Chief of Department's Office because he wanted the sergeant to provide him with Chief Scagnelli's telephone number because Chief Scagnelli was Chief of Transportation, which included all Highway Units. He testified that because he spoke to Chief Scagnelli "regularly," he wanted to lodge a complaint with the chief personally regarding Pattona's actions.

After Sergeant Gale arrived at the scene, the Respondent placed the incoming calls function of his cell phone on vibrator. Sergeant Gale first conversed with Pattona and then approached the Respondent. He immediately took and kept the Respondent's Department ID card which made the Respondent feel "uncomfortable." He asked what had happened and told the Respondent that he wanted to hear his side of the story.

When he began to tell the sergeant how Pattona had treated him, Sergeant Gale began screaming at him, "Who do you think you are? What gives you the right to stop a police officer in uniform and question him?" The Respondent raised his hands in the air and told him, "I'm a police officer. I don't understand. Why can't I ask a question?" He asked the Respondent, "Are you a supervisor?" The Respondent answered, "No." He again asked the Respondent, "Are you a supervisor?" The Respondent answered by asking him, "Where does it say that in the Patrol Guide?" The Respondent testified that that was the last thing he said to Sergeant Gale.

The Respondent testified that his cell phone began vibrating. The Respondent did not tell Sergeant Gale that his cell phone was vibrating. He removed his cell phone from its holster, looked at it, determined that it was an incoming call, turned his head and his

body sideways so that his left shoulder was facing Sergeant Gale, pressed the answer button on the phone with his thumb, placed the phone up against his ear, told the caller, "I gotta call you right back," hung up on the caller, and then re-holstered his cell phone. Sergeant Gale then became "enraged" and "yelled" at the Respondent, "Detective I want you to stand right here while I'm talking to you." Sergeant Gale then told him to meet him at the station house.

On cross-examination, the Respondent was confronted with a statement he made at his official Department interview. The Respondent agreed that when he got out of his car and Pattona yelled at him to get back into his car, in addition to asking Pattona what for, he also told Pattona, "I don't have to get back into the car. Why do I have to get back into the car?"

The Respondent was also confronted with records he obtained which reflect the calls he made and received on his cell phone during this incident. The Respondent acknowledged that these records indicate that with regard to the call he received while he was speaking to Sergeant Gale, he may have been on the phone for a minute or slightly longer. When the Respondent was asked if he was angry at Pattona immediately after he caused another car to almost hit the Respondent's car, he answered that he was not angry but that he was "shaken."

FINDINGS AND ANALYSIS

Specification Nos. 1 and 2

Both of these charges allege that the Respondent “did fail to comply with Department guidelines on confrontation situations” and both of these charges cite to Patrol Guide Procedure No. 212-33, “Confrontation Situations” (PG 212-33).

Thus, the threshold question presented is: Did the interaction between the Respondent and Pattona constitute a confrontation situation under PG 212-33?

I find that this question must be answered in the negative because the Department failed to meet its burden of establishing that, based on all of the circumstances surrounding this particular interaction, the Respondent and Pattona were involved in a confrontation situation as contemplated by PG 212-33.

The “Definitions” section of PG 212-33 states that, “For the purpose of this procedure” a “challenging officer” is a “uniformed member of the service who comes upon the scene where an unidentified armed person is observed.” Here, it is not disputed that Pattona did not come upon a scene and observe that the Respondent was armed. On the contrary, it is not disputed that it was the Respondent who came upon Pattona, a uniformed officer who was seated inside his stationary RMP, and that it was the Respondent who initiated their interaction by pulling his vehicle up next to Pattona’s RMP and calling out to him. Moreover, since the Respondent was still inside his vehicle at this point, Pattona was not aware that the Respondent was carrying a firearm.

Pattona stated at his official Department interview that he never felt threatened by the Respondent and it is clear that Pattona never considered this interaction to be a confrontation situation and never viewed himself as a “challenging officer” because he

never attempted to follow any of the confrontation procedure steps that a “challenging officer” is mandated to perform under PG 212-33. This procedure specifically requires that the challenging officer “(i)mmediately take cover to the rear, not to the side, of the person being challenged, if possible” and that he then identify himself “in a loud clear voice, stating *“Police! Don’t move.”* That Pattona did not believe that his encounter with the Respondent constituted a confrontation situation is also reflected by the fact that he did not request that the patrol supervisor of the precinct of occurrence respond to the scene, as required by PG 212-33(12). In fact, Pattona did not even request that his own supervisor, Sergeant Gale, respond to the scene until the Respondent insisted that Pattona radio for a supervisor to respond to the scene.

Finally, I find that the Department failed to establish that the Respondent was, or that Pattona ever perceived him to be, “an unidentified armed person.” The record indicates that when the Respondent initiated this interaction by pulling his vehicle up next to the RMP, Pattona was not aware that the Respondent was armed and that by the time Pattona realized that the Respondent was armed, Pattona had already concluded that the Respondent was a law enforcement officer. Pattona grudgingly admitted on cross-examination that he “might have possibly noticed” that the Respondent was wearing a law enforcement lapel pin as soon as the Respondent got out of his car, although Pattona asserted that he was unable to tell whether the lapel pin denoted that the Respondent was assigned to a Department detective unit or to the “Secret Service” or some other law enforcement entity. Moreover, Pattona admitted that as soon as the Respondent told him to contact his “supervisor,” he had “a very strong feeling” that based the Respondent’s use of this police jargon, he “was a member of the service.”

Based on the above, I recommend that Specification Nos. 1 and 2 be Dismissed.

Specification No. 3

It is charged that the Respondent was discourteous to Sergeant Gale in that he turned his back on the sergeant and began to “dial” his cellular phone while he was being questioned by Sergeant Gale about a confrontation situation.

Initially, I would note that the mere fact that the phrase “about a confrontation situation” was tacked on to the end of this charge is not fatal to the charge because a detective who is being questioned by a sergeant is never permitted to act in a discourteous manner regardless of the subject of the questioning. Since the phrase “about a confrontation situation” is an unnecessary addition to the charge, it is superfluous.

The Respondent testified that as he was facing Sergeant Gale and while the sergeant was questioning him about his interaction with Pattona, his cell phone began vibrating. The Respondent admitted that he did not tell Sergeant Gale that his cell phone was vibrating and that he did not request permission from Sergeant Gale to answer his phone. He testified that without giving any notice to the sergeant he removed the phone from its holster, turned his body sideways so that his left shoulder was facing Sergeant Gale’s face, pressed the answer call button on the phone with his thumb, placed the phone up against his ear and spoke to the caller.¹

Based on the Respondent’s testimony that he had placed the incoming calls function of his cell phone on vibrator (with the result that Sergeant Gale never heard the Respondent’s phone ring) and that his body was turned away from Sergeant Gale when

¹ The Respondent acknowledged on cross-examination that records he obtained which reflect the calls he made and received on his cell phone indicate that he may have been on the phone for a minute or slightly longer.

he pressed the answer call button on his cell phone with his thumb, it is not surprising that Sergeant Gale concluded that the Respondent was making a call by pushing numbers on his cell phone. It is not disputed that Sergeant Gale perceived the Respondent's action of turning away from him and speaking on his cell phone to be rude and disrespectful because the Respondent testified that Sergeant Gale became "enraged" and "yelled" at the Respondent, "Detective, I want you to stand right here while I'm talking to you."

Thus, even if I credit the Respondent's claim that when he was being questioned by Sergeant Gale he received, rather than initiated, a call on his cell phone, the Respondent is still guilty of discourtesy. His action of turning away from Sergeant Gale and speaking into his cell phone while he was being questioned by a superior officer was rude and, therefore, discourteous.

The Respondent is found Guilty of Specification No. 3.

Specification No. 4

It is charged that the Respondent wrongfully engaged in conduct prejudicial to the good order, efficiency, and discipline of the Department in that, in front of a group of bystanders, he questioned the authority of Pattona, an on-duty, uniformed police officer, to perform his job.

It is not disputed that at the time the Respondent and Pattona engaged in their verbal interaction in the street, the Respondent was off duty,² dressed in civilian clothing

² Although the Respondent acknowledged that he was officially off duty, he, nonetheless, implied that because he was driving to the office of a former councilwoman, who had complained about a condition within the 71 Precinct, he was engaged in an activity directly related to his official duties.

(and not displaying his Department shield), and driving a non-Department vehicle, while Pattona was on duty, in uniform, operating a marked Department vehicle.

The Respondent acknowledged that after he stopped his car next to the RMP, even though Pattona did not appear to be hurt or sick and even though Pattona told him several times to keep moving, he did not drive on and that when Pattona told him to pull his car over to the side of the road, instead of simply doing so, he told Pattona, "You pull over and I will pull over." The Respondent also acknowledged that when he got out of his car and stood on the street, Pattona immediately exited his marked Department vehicle and in a loud voice told the Respondent, "Get back in your car!" The Respondent admitted that he responded to this order by asking Pattona, "What for?" Moreover, on cross-examination, it was established that at his official Department interview, the Respondent admitted that he also told Pattona, "I don't have to get back into the car. Why do I have to get back into the car?"

The Respondent also admitted that he did not re-enter his vehicle and sit down in the driver's seat, as directed. Rather, he reached into the car and removed his radio and his cell phone. The Respondent further admitted that at the time that he and Pattona engaged in this verbal exchange, people who were standing at a nearby bus stop "were observing to some degree what was going on because it was an RMP there."

As a 24-year member of the service, the Respondent was aware that nothing about his personal appearance or his car would have alerted the people standing at the bus stop to the fact that he was a member of the service. Thus, to all appearances he was a civilian and he should have been conscious that by responding to Pattona's order that he re-enter his car by standing on the street and saying, "What for? I don't have to get back into the

car. Why do I have to get back into the car?” could only be perceived by these bystanders as a motorist brazenly questioning the authority of a uniformed police officer who had ordered him to get back into his car.

The Respondent is found Guilty of Specification No. 4.

PENALTY

In order to determine an appropriate penalty, the Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 NY 2d 222 (1974). The Respondent was appointed to the Department on December 18, 1984. Information from his personnel file that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

The Respondent has been found guilty of having been discourteous to a sergeant, who was questioning the Respondent. Although the Respondent's action of turning away from Sergeant Gale and using his cell phone while the sergeant was questioning him face-to-face was rude and, therefore, discourteous, the Respondent did not utter any discourteous remarks.

In Disciplinary Case No. 74789/99 (approved on January 12, 2000), an 11-year member with no prior disciplinary record forfeited 20 vacation days after he was found guilty of being discourteous toward a sergeant. That member, while off duty, had engaged in a dispute with his wife inside their residence. When a sergeant responded to the residence and attempted to question the member about what had happened, he turned his back on the sergeant and turned up the volume on his television set. However, that

case differs from the present case because that member was also found guilty of attempting to push his wife out of their apartment during their dispute.

The Respondent has also been found guilty of having engaged in conduct prejudicial to the good order, efficiency, and discipline of the Department by questioning the authority of Pattona, an on-duty, uniformed officer in front of civilian bystanders.

In Disciplinary Case No. 82658/07 (approved on May 5, 2008), a 13-year member with no prior disciplinary record forfeited 17 vacation days after he was found guilty of initiating a verbal dispute, while he was off duty, with an on-duty traffic enforcement agent (TEA). However, that case differs from the present case because the TEA was performing an enforcement action when the off-duty member confronted the TEA. Here, Pattona was not actively engaged in an enforcement action at the time the Respondent questioned his authority. That case also differs from the present case in that the member in that case was also found guilty of blocking the path of the TEA as the TEA was attempting to leave the area. The Respondent here did not physically confront Pattona.

In determining an appropriate penalty, I have also taken into consideration the Respondent's outstanding performance record over 23 years of service, and the fact that the only other time he was subjected to formal discipline occurred 20 years ago in 1988.

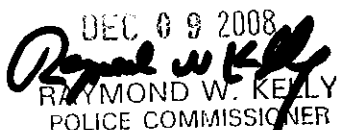
It is recommended that the Respondent be required to forfeit ten vacation days.

Respectfully submitted,



Robert W. Vinal
Assistant Deputy Commissioner - Trials

APPROVED

DEC 09 2008

RAYMOND W. KELLY
POLICE COMMISSIONER